

**CITY OF DETROIT
OFFICE OF CONTRACTING AND PROCUREMENT
REQUEST FOR QUOTE**

**RFQ NO. 542854
Windshield Washer Solvent Fluid**

Buyer: Arnita Clark

EVENT / ACTIVITY	DUE DATE / TIME
ADVERTISEMENT DATE	January 22, 2026
QUESTIONS DUE	February 9, 2026 on or before 4:00pm EST All questions must be submitted online in the Supplier Portal
PRE-BID CONFERENCE	N/A
QUOTES DUE DATE *	February 23, 2026 @ 4:00pm EST In the Supplier Portal as specified in this RFQ.

* Respondents must [register](#) in Bonfire (EUNA Procurement) to download bid documents and submit bids. **The City cannot guarantee the accuracy of any bid documents obtained from outside of Bonfire, and bids submitted outside of Bonfire will not be accepted.** Detailed resources about registering and bidding, including video tutorials and live, virtual office hours, are available at www.detroitmi.gov/suppliersupport.

Questions about the specifics of this RFQ must be asked within the Bonfire Messages interface for the bid on or before the date and time indicated above. Questions asked via phone, email, and/or other means will not be answered.

Quotes must be uploaded in Bonfire on or prior to the date and time indicated above. Late and/or emailed quotes will not be accepted.

1. PROJECT REQUEST

The City of Detroit Office of Contracting and Procurement (OCP) requests for quotes from qualified Respondents to render certain technical or professional services ("Services") as set forth in this RFQ to provide Windshield Washer Solvent Fluid for a two (2) year period with one (1) one-year renewal option.

2. BACKGROUND/DESCRIPTION OF ENVIRONMENT

It is the responsibility of the Bidder to review General Conditions. In your quotation a distinction between dollars and cents must be made. Also, illegible bids may be grounds for rejection of your bid. All changes made to the bid form altering, price, terms, quote and/or conditions. MUST be crossed out and initialed. Failure to initial any changes will be grounds for rejection of your bid.

3. AWARD CLAUSE INCLUDING RENEWAL OPTIONS

If a contract is awarded as a result of this RFQ, it will be a City of Detroit **Professional Services Contract (Attachment E)**. **The term of the contract will be for two (2) years.** Any renewal option exercised under this contract is effective only after the approval of the Detroit City Council and signed by the Chief Procurement Officer. **The City anticipates one or multiple awards as a result of the RFQ.**

4. STATEMENT OF WORK

GENERAL INFORMATION

SCOPE

It is the intent of this technical specification to describe a biodegradable, bio-based windshield washer solvent (WWS) to be used for the cleaning of windshields of urban transit buses and other service vehicles within DDOT fleet. It is the intent of DDOT to procure and use only windshield washer solvent products that are environmentally responsible, non-corrosive, and safe for use by employees, while maintaining compatibility with vehicle components, painted surfaces, metals, rubber, and plastics.

The product shall be non-flammable, low in volatile organic compounds (VOCs), phosphate-free, and compliant with all applicable federal, state, and local environmental and safety regulations. The product shall not contain harsh solvents that could damage transit vehicle components or facility surfaces. The product shall perform in accordance with the requirements outlined in the purchase order and contractual documentation and shall meet DDOT operational, safety, and environmental compliance standards.

Additional requirements include the supply of windshield washer solvent consisting of premixed UN1993 Methanol and water used in support of the DDOT owned vehicles. The windshield washer solvent shall be Chemtrec #CCN682985; CUL-MAC Industries Starfire WWF -20, Fluid 2069, #4997 – #4997D, or DDOT approved equal.

The solvent shall be premixed, formulated to provide additional freezing protection superior to water. No ammonia shall be added. It shall protect to at least -20 deg F and shall clear windshields of dirt, bug stains, frost and ice. It shall be a clear solution, with no suspended matter, and with a tint of blue (or another easily recognizable color). It shall also be harmless to vehicle body finishes.

The chosen vendor is expected to have all materials and equipment necessary to supply such product listed in the Purchase Order and contractual documentation.

DDOT, MFR #	Description	Package	Qty
DOT-803536, WW220, CHEMTREC #CCN682985, CUL- MAC Ind 4997	WINDSHIELD WASHER PREMIX, FlamableNOS Class 3 PGIII	55 GAL PLASTIC DRUM	160

The contract term for the supply of the windshield washer solvent (WWS) shall be two (2) years.

DEFINITION OF TERMS

The term "Vendor" as used in this Specification, means the concern or its duly authorized representatives accepting the order to furnish the bio-WWS specified herein.

The term "Department of Transportation", as used in this Specification means the Department of the City of Detroit, its personnel or its duly authorized representatives having to do with the purchase, inspection, testing, acceptance or rejection of the material called for in this Specification. The terms "Approved" and "Approval" as used in this Specification mean explicit approval by the Quality Assurance Manager of the Vehicle Maintenance Division of the Detroit Department of Transportation (DDOT) or designee.

ERRORS, OMISSIONS & DEVIATIONS

In no instance shall the Vendor be allowed to deviate from this Specification unless written permission is first obtained from DDOT's Quality Assurance Manager of the Vehicle Maintenance Division. All proposed deviations from this Specification shall be explicitly noted by the bidder in the submitted bid package. The Vendor shall not be allowed to take advantage of any errors or omissions in this Specification, since full instructions will always be given should such errors and omissions be called to the attention of the Department of Transportation.

SPECIFICATION CONFORMANCE

The Awardee must conform to the final approved specifications. All WWS supplied to the DDOT must comply fully with the provisions of this specification except in cases where Federal, State or local governmental regulations prohibit such compliance. In all cases the WWS furnished under this contract must be of the maximum quality attainable and in compliance with Federal, State and local regulations.

QUALITY OF MATERIALS

The Vendor shall assume full responsibility for all materials and accessories specified herein. All materials furnished under this Specification shall be of the best commercial quality, and shall be in full accordance with the most modern engineering and manufacturing processes.

The Manufacturer shall be a reputable firm regularly engaged in the design and manufacture of the type of material specified herein.

VENDOR EVALUATION

The vendor shall be responsible, and a responsive firm regularly engaged in the supply. The award shall be made to the lowest responsive and responsible bidder in accordance with City of Detroit procurement requirements. In determining responsiveness and responsibility, the following will be considered:

The Vendor shall be a responsible and responsive firm regularly engaged in the manufacture or supply of WWS for a minimum of five (5) years.

The proposed product shall meet all requirements of the Scope of Work and technical specifications, be suitable for use on DDOT transit buses and related equipment and comply with bus manufacturer cleaning recommendations without causing damage, corrosion, or adverse impact to vehicle finishes, components, or warranties.

The Vendor shall submit complete and acceptable documentation, including product specifications, Safety Data Sheets (SDS/MSDS), and any required certifications.

The Vendor should provide a minimum of three (3) customer references from transit agencies or comparable fleet operations demonstrating successful use of the proposed product. Reference information and vendor performance may be considered in the evaluation.

Pricing shall be evaluated based on unit price, inclusive of all applicable costs. Failure to meet any mandatory requirement may result in the bid being deemed non-responsive.

QUALITY ASSURANCE

SAMPLES FOR TESTING AND APPROVAL

Prior to the submittal of DDOT's award recommendation to the Office of Contracting and Procurement, the apparent successful bidder shall provide samples of the proposed WWS. The WWS manufacturer's complete Technical Data and Material Safety Data Sheets shall be provided with each sample.

Upon request a sample of up to 5 gallons shall be delivered to the DDOT within five (5) business days of the date requested. The WWS container, shipping package and labeling shall meet all Federal, State and local regulatory shipping requirements. The sample shall be retained by the DDOT to be used as a standard to compare against subsequent shipments during the contract. A portion of the sample may be sent to a laboratory selected by the DDOT and/or the WWS manufacturer to perform identification, physical and chemical property tests. If the DDOT elects to have tests performed, the tests results shall be considered as conclusive for the purpose of this solicitation evaluation. All costs associated with the tests shall be the responsibility of the DDOT.

INSPECTION TEST

At each delivery, the Vendor's representative may be asked to draw a 16-ounce WWS sample from the sample container in the presence of a DDOT representative into a sampling container supplied by the DDOT. The sample shall be given to the DDOT representative accepting and signing for the delivery. Randomly selected WWS samples may be sent to a laboratory selected by the DDOT

and/or the manufacturer for identification, physical and chemical property tests to determine continued compliance with specifications.

WORKMANSHIP

Workmanship throughout shall conform to the highest standard of commercially accepted practices. The Vendor's representative shall deliver and monitor the delivery of the WWS. Containers shall be checked by the DDOT's representative in the presence of the Vendor's representative prior to and after delivery. The quantity delivered shall be recorded on the delivery ticket.

REJECTION

Rejected materials shall be made good, immediately upon demand to and at the expense of the Vendor. Failure of any of the material, or of a sample or samples hereof to pass inspection or test, will be cause for rejection of the material furnished under this specification. Rejected materials will be returned from the point of delivery; the Vendor paying transportation charges both ways. The Vendor shall remove any rejected WWS at no additional cost to the DDOT. The DDOT shall deduct all costs for damages incurred as a result of the rejected WWS, to repair and/or replace equipment, including but not limited to: DDOT owned storage tanks, non-revenue vehicles, bus exterior and interiors finishes, from the Vendor's invoices.

PATENTS

The Vendor shall protect and indemnify the City of Detroit and any and all Departments thereof against all loss or expense of any nature whatsoever, and shall bear the cost of any and all suits which may arise; and shall pay any and all damages which may be awarded against the said City of Detroit and any and all Departments thereof in consequence of the use, under this Specification, of any patented device, process, apparatus, material or invention.

QUOTES/PROPOSALS

The Department of Transportation, with the concurrence of the Office of Contracting and Procurement reserves the right to reject any and all quotes or proposals made under this Specification.

SUBMITTALS

All Vendors shall submit with a bid a complete Technical Data Sheet and one (1) Material Safety Data Sheet. The Technical Data Sheet shall describe the intended use of the product, instructions for safe and proper use, and all pertinent chemical and physical properties of the product.

The Material Safety Data Sheets shall be completed in strict compliance with the latest local, state and federal safety laws, ordinances, rules and regulations. Approved and latest forms, such as OSHA-20, shall be used for this purpose giving the following information:

- 1) Complete breakdown of all hazardous ingredients
- 2) Physical data
- 3) Fire and explosion data
- 4) Spill or leak protection
- 5) Reactivity data

- 6) Health hazard data
- 7) Special protection information
- 8) Special Precautions and any other pertinent information

The successful Vendor also shall supply completed six (6) Material Safety Data Sheet covered with plastic laminate (ready to post on or near the material) before the first shipment of the product for the safety of all people involved in the handling of the same.

HEALTH, SAFETY, ENVIRONMENTAL AND REGULATIONS

The WWS shall contain no toxic ingredients. Exposures to the bio-based WWS as a result of its intended use as described in this specification shall not cause irritation to nostrils, eyes or skin.

The Vendor shall provide the bio-based WWS manufacturer's written personal protective equipment recommendation list for use of the bio-based WWS as intended and described in this specification.

The WWS shall be safe for the intended applications described in this specification and shall comply with all applicable Federal Occupational Safety and Health Administrations Directives, Michigan Bureau of Safety and Regulation - MIOSHA Standards and Administrative Rules and City of Detroit Ordinances.

All WWS ingredients shall comply with Federal Environmental Protection Agency Laws and Regulations, Michigan Department of Environmental Quality, City of Detroit Ordinances and Department of Environmental Affairs.

SPECIFIC REQUIREMENTS

DDOT currently utilizes a bio-based WWS for transit operations. The products presently in use previously identified as "Windshield Washer Solvent," any proposed equal product shall meet or exceed the performance characteristics of the products currently in use, comply with all applicable window cleaning usage and maintenance recommendations, and be verified as non-corrosive, non-abrasive, non-damaging, and free from defects that could adversely affect vehicle finishes, components, or manufacturer warranties. The Contractor shall provide supporting documentation, including manufacturer technical data and safety data sheets, to demonstrate compliance.

This type of WWS is a biodegradable, liquid bio-based WWS used to clean the transit bus windshields. Any odor shall be mild non-objectionable. The product shall remain stable and shall not become rancid during storage for a period of up to one year.

The bio-based WWS shall conform to the following:

PHYSICAL PROPERTIES:

FORM:	Liquid
COLOR:	Blue or other
DELIVERY TYP	Pre-Mixed
ODOR	Pleasant
pH	7.5 -9.8

BOILING POINT	172° F minimum
FREEZING POINT	< 0° F
SOLUBILITY IN WATER	Miscible in water

- This type of WWS is a biodegradable, liquid form.
- When used as directed in the DDOT's equipment, the WWS shall remove surface dirt, road film, exhaust deposits and bug residue from glass surfaces.
- The WWS shall not adversely affect the glass, exterior paints, anodized aluminum, rubber, steel, brass, plastics, fiber glass, etcetera used on the buses and vans.

SUMMARIZATION OF BIO-BASED WWS:

Description	Packaging	Est Annual Qty
WINDSHIELD WASHER SOLVENT	55 GAL DRUMS	160

PACKAGING & DELIVERIES

PACKAGING

The Vendor shall deliver the WWS in accordance to the quantity and the packaging requested in the bid form. It is imperative that all deliveries including packaging and containers are labeled and clearly visible, providing accurate details as to the contents of the container. (i.e.: Manufacturer Name, Product Name, Quantity, etc.)

Packaging shall be boxed, labeled, or refilled via bulk tankers. The shipping containers and dispensing equipment shall be free of water, dirt and other contaminants and shall be used exclusively for the shipment of WWS. In all cases, quantities delivered shall be accurate to within one (1) gallon per shipment.

COMMERCIAL BOXES

All shipments shall be labeled in an approved manner with the following information.

- Description and kind
- Vendor's name
- Vendor contents delivered
- DDOT Contract Number
- Date shipped to the DDOT
- City of Detroit Purchase Order Number
- All information about Health, Safety, Usage etc. as required by law
- Batch number

TOTE DELIVERIES

The Vendor shall deliver the WWS as ordered to the DDOT within two (2) business days of the date ordered. The Vendor shall bear the full expense of shipping the WWS to the DDOT.

The totes shall be equipped with a level meter to accurately register, within one (1/2) gallon, the quantity of cleaner in the tote. The quantities delivered to the Department shall be provided in writing at the time of the delivery. The Vendor shall consult the location Storekeeper before exchanging the storage totes. No deliveries shall be made without prior authorization by the Material Management Division.

Note: The vendor is sole responsible for supplying, replacing, and maintaining the totes at all DDOT delivery locations.

Each tote shall be permanently labeled with the following information.

- Vendor name
- Product description and kind
- DDOT Contract Number
- Date shipped to the DDOT
- City of Detroit Purchase Order Number
- All Safety related protocols

DELIVERY INFO

Deliveries shall be made F.O.B. to the following locations (subject to change) as requested:

Shoemaker Garage	Coolidge Garage
5151 St. Jean	14044 Shaefer
Detroit, MI 48213	Detroit, MI 48227

Gilbert Garage	Central Repair
5600 Wabash	5025 Russell
Detroit, MI 48208	Detroit, MI 48211

The Vendor shall deliver the bio-based WWS as ordered, to the Department of Transportation within three business days of the date ordered. All deliveries shall be between the hours of 8:00am and 3:00pm Monday through Friday (except City of Detroit recognized holidays) unless pre-approved by the manager of the DDOT Material Management Division or its designated representative.

BULK STORAGE TOTES

The vendor shall provide, own and maintain the storage totes for the WWS. The Vendor shall be liable for costs associated with these totes except for cost incurred as a result of the DDOT's negligence. The WWS shall be non-corrosive to the storage tanks, valves, etc.

Vendor shall provide 55 gallon drums for bio-based WWS storage where the garage bus servicing equipment is housed. There shall be no cost to DDOT for the WWS containers or the use thereof.

The Vendor shall clean these totes prior to refilling. All totes shall be maintained and repaired as deemed necessary by the DDOT. A perspective maintenance schedule is to be submitted with each bid. The Vendor shall be responsible for any subsequent equipment failures due to deviation from maintenance schedule prescribed in the bid.

DISPOSAL REQUIREMENTS

The WWS manufacturer shall provide documentation that this cleaner meets with EPA and other governmental agencies regulation for sewer disposal.

5. OPERATIONAL INFORMATION

Awarded Contractor(s) will work closely with City agency staff.

The Respondent is expected to provide service in accordance with the terms of the executed contract and under the rules, regulations, and supervision of the City.

6. MINIMUM QUALIFICATIONS

Engaged in the manufacture or supply of Windshield Washer Fluid for a transit agency or fleet operations for a minimum of five (5) years.

Satisfactory references from transit agencies or fleet operations.

Authorized to conduct business in the State of Michigan

7. OPERATIONAL INFORMATION

Awarded Contractor(s) will work closely with City agency staff.

The Respondent is expected to provide service in accordance with the terms of the executed contract and under the rules, regulations, and supervision of the City.

8. TECHNICAL INFORMATION

Specifications, Change of Specification, and Errors or Omission. Specifications which refer to brand names are given for reference. Respondents may quote on equivalent articles, provided that brand name and catalog number(s) and any deviations are noted on the bid form and complete descriptive literature is furnished. Exceptions will state "Do Not Substitute." The decision of the City shall be final.

9. QUESTION DEADLINE

All questions regarding the RFQ shall be submitted through the Supplier Portal no later than the time and date specified on the Cover Page. In the interest of transparency, only written questions will be accepted. Answers to questions will be posted within the Supplier Portal. The City of Detroit does not guarantee a response to questions not submitted after the question deadline.

Should a Respondent be in doubt as to the true meaning of any portion of this RFQ or find any patent ambiguity, inconsistency, or omission herein, the Respondent must make a written request

for an official interpretation or correction in accordance with the instructions for submitting questions as specified in this RFQ.

Respondents are advised that no oral interpretation, information or instruction by an officer or employee of the City of Detroit shall be binding upon the City of Detroit.

Respondents requesting changes to the RFQs terms and conditions, specifications, quantities, etc.; or if clarifications are needed, must make the request in writing by the stated bid submission deadline.

10. REJECTIONS, MODIFICATIONS, CANCELLATIONS

The City of Detroit expressly reserves the right to:

- 1) accept or reject, in whole or in part, any and all quotes received;
- 2) waive any non-conformity;
- 3) re-advertise for quotes;
- 4) withhold the award for any reason the City determines;
- 5) cancel and/or postpone the request for quotes, in part or in its entirety, and/or,
- 6) take any other appropriate action that is in the best interest of the City.

This RFQ does not commit the City of Detroit to award a contract, to pay any cost incurred in the preparation of a quotes under this request, or to procure or contract for services.

11. PROTESTS

Protests can be filed with the Office of Procurement. Interested parties aggrieved by a solicitation or the award of any resulting contract, may file written notice of protest to the following:

**City of Detroit Chief Procurement Officer
2 Woodward Avenue, Suite 1008
Detroit, MI 48226
“Procurement Protest”**

At a minimum, such protests shall include:

- 1) name of protestor.
- 2) solicitation/contract number and description; and
- 3) statement of grounds for protest (reference specific text in the solicitation, bid or contract document that is at issue).

The decision of the Chief Procurement Officer and/or the Department Director are final and is not subject to appeal.

12. INVOICES

Vendors must be registered in City of Detroit Vendor Portal and be a registered vendor with the City of Detroit to submit invoices and receive payments. Go to <http://www.detroitmi.gov/Supplier> to register.

AUTHORIZATION TO COMMENCE WORK OR SHIP GOODS – READ CAREFULLY!!!

Contractors may begin work or ship goods upon receipt of the required authorization, which is the CPA (Contract Purchase Agreement), in addition to *SPO (Standard Purchase Order)*, from Procurement.

The CPA (City Council Approved and Awarded Contract Purchase Agreement) alone is NOT authorization to begin work! NO letter of Intent, or Letter to Commence Work will be issued.

****Work commencing without issuance of the SPO is subject to Payment Delays and/or Non-Payment! ****

Required vendor steps to invoice:

- 1) Invoices should NOT be uploaded until the Contractor receives confirmation of review and approval from the City of Detroit.
- 2) Vendors should submit their invoices via City of Detroit Vendor Portal. Portal invoice amount and creation date must match the date on attached invoice. Please follow the below invoice requirements:

Invoice MUST contain or have as attachment:

- Vendor Name and address on Invoice
- Contact Info on Invoice (Accounts Receivable contact with phone and email)
- Remittance information (MUST be included, or the invoice is subject to rejection)
- City of Detroit contact (person who authorized work to commence)
- Invoice Date
- Date of service/delivery
- Contract number
- Purchase order number
- Total Invoice amount

Other invoice requirements:

- Invoice must be billed based on Purchase Order rates
- Total invoice amount must tie to the total supporting documents
- Supporting documentation must be attached to the invoice in the portal

Terms are standard NET 30 Days, unless otherwise negotiated, and start from the invoice receipt date, provided that the invoice is submitted timely to our AP department with the necessary supporting documentation.

If you need assistance, please contact the Office of Departmental Financial Services (ODFS) 313-410-7804.

13. PREVIOUS EXPERIENCE

The City's experience with the bidder on previous contracts will be considered in determining the award.

14. MISCELLANEOUS

It shall be the responsibility of the Respondent to thoroughly familiarize themselves with the provisions of these specifications. After executing the contract, no consideration will be given to any claim of misunderstanding.

The Respondent agrees to abide by the rules and regulations as prescribed herein by the City as the same now exists or may hereafter from time to time be changed in writing.

Contractors are encouraged to contract with small and minority businesses, women's business enterprises, labor surplus area firms and Detroit businesses. The City strongly encourages the hiring of Detroit residents whenever possible by contacting Detroit At Work for your hiring needs. Visit the Detroit At Work website at www.detroitatwork.com for specific contact information regarding these opportunities.

15. GENERAL CONDITIONS:

It is the responsibility of the Bidder to review General Conditions located on the City of Detroit's website.

1. GENERAL CONDITIONS

It is the responsibility of the Bidder to review General Conditions. In your quotation a distinction between dollars and cents must be made. Also, illegible bids may be grounds for rejection of your bid. All changes made to the bid form altering, price, terms, quote and/or conditions. MUST be crossed out and initialed. Failure to initial any changes will be grounds for rejection of your bid. CORRECTION FLUID IS NOT ACCEPTABLE.

2. LOCAL PREFERENCE CONDITIONS

It is the responsibility of the Bidder to review the Local Preference Conditions attached to this bid and comply with all requirements therein.

3. MINOR DEVIATIONS

Specifications referred to herein are used to indicate desired type, and/or construction, and/or operation. Other products and/or services may be may be

offered if deviations from specifications are minor and if all deviations are properly outlined and stated in the bid document. Failure to outline all deviations will be grounds for rejection of your bid.

The decision of the City of Detroit, acting through the Chief Procurement Officer, shall be final as to what constitutes acceptable deviations from specifications.

4. RENEWAL

The proposed agreement may be renewed for one (1) one-year option. Both parties must agree to an extension under the same terms and conditions as exist in the then current contract.

5. AWARD

One award of contract will be made on a low total net bid based on the estimated quantities shown. Bidders shall quote on all items, leave no blanks and state "No Charge" where applicable. Blank spaces are no offer. The City of Detroit reserves the right to delete any item(s) from the award. All awards are subject to Ordinance No. 15-00.

6. TERMINATION OF CONTRACT

At any time during the contract the City may terminate the agreement for reason of poor or deficient work performance, inability of the Contractor to reason of poor or deficient work performance, inability of the Contractor to supply trained competent technicians, or lack of service as described in this agreement by giving a 10-calendar day notice in writing. EITHER party may terminate the agreement by giving a 30-calendar day written notice to terminate.

7. TERMINATION OF CONTRACT

The City reserves the absolute right to terminate this contract in whole or in part, for the convenience of the City at its sole discretion on thirty (30) days written notice to the Vendor.

8. SPECIFICATION CHECK

We have read the specifications thoroughly and we:

- ☐ Are able to meet specifications without deviation.
- ☐ All deviations are properly outlined on an attached sheet marked _____ for identification.

SIGNED: _____

TITLE: _____

9. STOCKING FACILITY

The successful bidder will be required to have a stocking facility within the Detroit Metropolitan area or a toll-free telephone number to expedite deliveries to using departments.

- ☐ Our stocking facility is located at:

and our Detroit representative is

- ☐ Our toll free telephone number is

10. Price

(If you do not check one of the following, your bid will be considered firm.)

- ☐ A. Contract prices are not subject to increase but will be subject to reduction. (This will be considered only in case of identical prices offered.)
- ☐ B. Contract prices are FIRM for the entire contract period.
- ☐ C. Contract prices are firm for ONE YEAR and are then subject to adjustment with a maximum increase of _____ % for each subsequent year of the contract.

Percentage figure must be shown to obtain consideration under Paragraph C above. For evaluation purposes, the percentage figure shown will be added to your price for the corresponding period(s) in the contract.

The City of Detroit reserves the right to cancel the balance of any contract if any proposed increase (in writing) is considered unacceptable.

11. QUOTING ON

11.01 Quoting On

We are quoting on MODEL [REDACTED]
Manufactured by [REDACTED]
and described in the attached literature marked [REDACTED] for
identification.

EXCEPTIONS TO SPECIFICATIONS ARE: [REDACTED]

12. LITERATURE

Descriptive literature showing the unit's dimensions and features must be included. If the size, capacity, or features of the unit, or any of its components are not clearly defined in the printed literature submitted with the Bid, the Bidder shall furnish supportive data in sufficient detail so that the unit may be checked for conformity to the specifications.

If any of the features or dimensions of the unit the Bidder proposes to furnish do not meet the specified requirements, the Bidder shall indicate such deviations in the space provided on the Bid Form. Failure to provide this information may result in rejection of your bid.

13. SHIPMENT

The Contractor will be expected to make reasonably prompt deliveries consistent with quantities ordered. Should an emergency arise for items, which are not available, The City of Detroit reserves the right to secure sufficient quantities from others to meet its immediate needs without prejudice of the proposed contract. If, however, in the sole opinion of the Finance Department, Office of Contracting and Procurement, the contractor fails to render reasonably prompt delivery service, the City of Detroit may terminate the contract forthwith and no damages will accrue.

The City of Detroit wherein referred to shall mean the City of Detroit, acting through the Chief Procurement Officer.

It is understood that these supplies will be required in various shipments from time to time. Shipments will be made within [REDACTED] days from each notice to ship. The City of Detroit reserves the right to reject low bids offering unsatisfactory shipment terms.

14. ORDER QUANTITIES

Actual quantities ordered will be contingent on funds available at time of purchase. The City of Detroit reserves the right to reduce quantities if price quoted exceeds budgetary limitations or to increase quantities if funds are available.

15. TERMS OF PAYMENT

A discount of % will be allowed for payment of invoice within thirty (30) days of delivery and acceptance of the above items and vendor's invoice. Other terms less than forty-five (45) days, E.O.M., Proximo, etc., shall not be considered. Payment terms will not be considered in determining the award of the contract(s), except in the case of tie bids. However, discounts may be offered to facilitate prompt payment.

The City of Detroit reserves the unqualified right to reject any bid, which includes a provision for a service charge levied by a vendor when payment by the City is not made within a specified time period.

This paragraph supersedes paragraph 4 of the General Conditions.

16. F.O.B.

Goods are to be F.O.B. delivered to location(s) within the City of Detroit and other specified locations as indicated. (See Scope of Work for details)

17. INSURANCE *(use the insurance matrix related to your commodity)*

The successful bidder must furnish Property Damage Insurance in the sum of \$100,000.00, Commercial General Liability (Bodily Injury) insurance in the sum of \$300,000.00 minimum, or contractor's standard policy, if equal or exceeding limits, and Workmen's Compensation; City of Detroit shall be named as additionally insured on Commercial General Liability Insurance Policies.

18. CONTRACT ACCEPTANCE

The successful bidder shall be notified of the execution of a contract by the City of Detroit upon issuance of a "Contract Award Notice" or a Purchase Order. The "Contract Award Notice" shall contain the date the contract award was approved.

The signed, accepted bid of the successful bidder will be the contract between the bidder and the City of Detroit, containing the full description of all contractual terms and conditions. A copy of your signed bid will not be mailed to you. Each bidder shall keep a copy of his/her signed bid form for future reference.

19. INSURANCE

19.01 The Contractor shall maintain at its expense during the term of this contract, the following insurance:

- 19.01.1 Worker's Compensation insurance with Michigan statutory limits and Employer's Liability insurance with limits of \$500,000.00 each accident, \$500,000.00 each disease, \$500,000.00 each disease/each employee. For Federal and State Funded Training Programs and etc., is required to secure insurance for worker's compensation for all of its participants and The City of Detroit should also be listed as an additional insured.
- 19.01.2 Commercial General Liability insurance with a combined single limits of \$1,000,000.00 per occurrence subject to a minimum aggregate limit of \$2,000,000.00
- 19.01.3 Automobile Liability insurance covering all owned, hired and non-owned vehicles with personal protection insurance and property protection insurance to comply with the provisions of the Michigan No-Fault Insurance Act, including residual liability insurance with a minimum combined single limit of \$1,000,000.00. Include MCS90 endorsement (if hazardous waste will be transported by vendor's auto) with minimum property damage limits of \$1,000,000.00 each occurrence.
- 19.02 If during the term of this contract, changed conditions or other pertinent factors, should in the reasonable judgment of the City, render inadequate the insurance limits, the Contractor will furnish on demand such additional coverage as may reasonably be required under the circumstances. All such insurance shall be effected at the contractor's expense, under valid and enforceable policies.
- 19.03 All policies shall name the Contractor as the insured and shall be accompanied by a commitment from the insurer that such policies shall not be canceled or reduced without at least thirty (30) days' prior notice to the City. The Commercial General Liability insurance policy shall name the City as an additional insured. Certificates of insurance evidencing such coverage shall be submitted to the Finance Department, Office of Contracting and Procurement, prior to the commencement of performance under this contract and at least fifteen (15) days prior to the expiration dates of expiring policies.

20. BID WITHDRAWAL

No bid shall be withdrawn for 120 days from submission deadline. Bidders may reduce this period if stated on bid, but such bids may be rejected on the basis of the reduced time period.

This paragraph supersedes paragraph 14 of the General Conditions.

21. EQUALIZATION FACTOR

Per Section 17-5-12 (c)(1) of the Detroit City Municipal Code, “The bidder that makes the lowest bid, as evaluated or scored, shall be deemed the lowest equalized bidder. If the lowest equalized bid is evaluated or scored below the lowest responsible bid submitted, the lowest equalized bidder shall be awarded the contract, provided that, the contract awarded to such bidder shall not exceed, more than 12 percent above the lowest responsible bid submitted, or \$100,000.00, whichever is less.”

The firm making the lowest responsive, responsible bid evaluated according to the Equalization Allowance Table* shall be deemed the lowest bidder. (see Equalization Credit Statement).

Vendors who wish to receive Equalization credit for bids submitted must submit their CRIO-issued Detroit Based Business certificate with their bid document to substantiate eligibility. The CRIO certificate must be submitted with each and every bid response submitted by the vendor. Failure to submit the CRIO certificate will result in equalization credit not being applied to your bid.

22. CLEANLINESS OF THE WORK AND STREETS

The work itself, and all property used therewith, shall be kept in a neat and orderly condition at all times. Excess waste and rejected materials, rubbish and debris shall not be allowed to accumulate. Construction equipment, and excess materials shall be promptly removed from site when no longer needed for the progress of the work. Upon completion of the work, the contractor shall restore the site to original condition.

23. EXPERIENCE AND REFERENCES

Past performance and experience may be factors in making the award.

Please complete information in Attachment A – Respondent’s Questionnaire

24. PATENTS. The Contractor shall protect and indemnify the City against expense of any nature, shall bear the cost of any law suits which may arise and shall pay damages which may be awarded against the City for the use, under this specification, of any patented device, process, apparatus, material or invention.

25. DELIVERY TERMS/TIME. F.O.B. delivered prices are preferred. F.O.B. delivered means delivered to the dock of the institution of department noted on the bid, and will include all charges for packing, draying, etc. Bidder may, at their option, quote F.O.B. shipping point. Prices bases on F.O.B. Shipping Point will be considered after adding transportation charges and insurance costs. Bidders must show shipping weight and point of shipments on all shipping point bids. Delivery time is a part of the consideration and must be adhered to. If time varies on different items, the bidder shall so state.

26. CONTAINER. Packing, reels, etc., if chargeable, must be shown as separate items. Return freight must be paid by bidder.